

Court No. - 46

Case :- WRIT - C No. - 19370 of 2020

Petitioner :- Manoj And Another

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Subhash Gosain, Santosh Kumar Giri

Counsel for Respondent :- C.S.C., Krishna Agarawal

Hon'ble Naheed Ara Moonis, J.

Hon'ble Vivek Varma, J.

At the request of Sri S.K.Yadav, learned counsel appearing on behalf of the respondent-Power Corporation, put up this case in the additional cause list on 01.12.2020 to enable him to seek instructions.

Order Date :- 25.11.2020

Lbm/-

Court No. - 21

Case :- WRIT - C No. - 19370 of 2020

Petitioner :- Manoj And Another

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Subhash Gosain, Santosh Kumar Giri

Counsel for Respondent :- C.S.C., Krishna Agarawal

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Sanjay Kumar Pachori, J.

Heard learned counsel for the petitioners; learned Standing Counsel for State respondents and Shri Krishna Agarawal for the contesting respondents.

Present writ petition has been preferred assailing the validity of the impugned recovery proceeding with regard to theft of electricity committed by the petitioners and for a direction to respondent no.3 to decide the representation dated 14.09.2020.

It has been alleged that entire exercise under the Electricity Act/ Electricity Supply Code has been undertaken exparte against the petitioners. Learned counsel for the petitioners submits that provisional assessment has been made and at no point of time he is permitted to file objection to the said provisional assessment and liability has been fastened. It is also submitted that the petitioner has also not yet received the copy of provisional assessment. Sub-section (3) of Section 126 of the Electricity Act, 2003 mandates the supply of the provisional assessment order to the incumbent against which he has right of filing his objections and it is only after considering the objections, the respondents can pass a final assessment order.

Learned counsel for the contesting respondents on the basis of instructions very fairly states that the provisional assessment has been sent to the petitioners through ordinary post. In case the petitioners files objection to the provisional assessment, then definitely the proceeding would be finalised within stipulated period. Copy of the provisional assessment has been given to learned counsel for the petitioners today in the Court.

The Court has proceeded to examine the record in question and does not find anything on record to show that the provisional assessment order was ever served upon the petitioner and in the interest of justice one more indulgence is required to be extended to the petitioner. Accordingly the writ petition stands **disposed of** asking the petitioner to furnish objection to the provisional assessment within two weeks and in case any such objection is preferred, the competent authority would proceed

to take final call in the matter strictly as per law in further six weeks after giving opportunity of hearing to the petitioner. For a period of eight weeks or till the disposal of the said proceeding, no coercive action shall be taken against the petitioners.

The party shall file computer generated copy of such order downloaded from the official website of High Court Allahabad, self attested by the petitioners alongwith a self attested identity proof of the said person (preferably Aadhar Card) mentioning the mobile number to which the said Aadhar Card is linked.

The concerned Court/Authority/Official shall verify the authenticity of such computerized copy of the order from the official website of High Court Allahabad and shall make a declaration of such verification in writing.

Order Date :- 7.1.2021

SP/